



Press Publishers Versus AI – Not a Matter of Property but of Fairness

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Abstract AI-powered answer engines are leading to the media revolution of our time. Within seconds, they provide their users with AI-generated answers thereby creating a new information structure online. To generate their content, they also use press publications. This results in a new conflict: press publishers versus AI. To address it, EU media regulation should not aim at securing the income stream of press publishers, but at a well-functioning information market that benefits the public sphere. In this opinion, I propose to frame the conflict not as one of property but as a matter of fairness between competitors on today's information market. Due to the principle of freedom of imitation, answer engines may resemble press publications if their imitations do not exceed a certain threshold of unfairness.

Keywords Press publishers' right · Journalism · Artificial intelligence · Freedom of information · Copyright law · Unfair competition law

1 Introduction: Democratisation of Information

AI-powered answer engines are leading to the latest media technology revolution: in a fraction of a second, they generate answers and very often provide users with all the information they need. To begin with, this new information ecosystem is not a bad thing – it is actually a pretty good thing. Generative AI is creating a *democratisation of information*. Not everyone can afford a newspaper subscription, but anyone with a mobile device has a world of information at their fingertips that previous generations could only ever dream of. As LLM-based chatbots gather this information from press publishers' content, this revolution results in a new conflict in the realm of communications: press publishers versus AI. Before addressing its

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legal regulation, the environment in which this conflict is unfolding must be considered: with the new information infrastructure of the twenty-first century, press publishers are not *the* basic condition for the public sphere but rather just one actor contributing to it (Sect. 2). By granting them an exclusive right to fight Big Tech, the EU media regulation does not reflect this new reality but wants to preserve an old world that is vanishing. All of its shortcomings arise from the nature of the press publishers' right as a property right (Sect. 3). In this opinion, I argue that EU media regulation should not care for the income stream of press publishers but for a well-functioning information market that benefits the public sphere. The free-riding of AI companies on content press publishers have created is thus not a matter of property but of fairness (Sect. 4). I suggest that the conflict – press publishers versus AI – should be understood as one between market players whose conduct must be *fair* to one another to ensure a prosperous information market in the EU (Sect. 5).

2 Press Publishers and the Public Sphere

Before turning to the EU media regulation, it is necessary to describe the current media landscape in which the latest technology revolution is taking place. Today, journalists and press publishers have different fortunes (Sect. 2.1), as do good and bad press publishers (Sect. 2.2). Yet, what I think is even more important for a regulation of today's information market is the fundamental assumption that, in our times, press publishers are not *the* guardians of the public sphere (Sect. 2.3).

2.1 Journalists and Press Publishers Have Different Fortunes

Journalism no longer depends on press publishers. Press publishers do not inherently offer any journalistic added value over content produced by individuals on platforms such as Substack. Press publishers exist because they used to be necessary for organisational reasons – they were the original platform business. Without printing presses, there would have been no newspapers. Thanks to technological progress, anyone can now produce and publish journalism. Platforms have empowered anyone with a social media profile to become a public voice. For journalists, this means nothing less than freedom. They no longer have to be employed by press publishers but can work as a one-person company. Think of Derek Thompson who left *The Atlantic* after almost 17 years for Substack. To give another name: Barri Weiss. After resigning from *The New York Times* in 2020, she founded *The Free Press*, an internet-based media company, which Paramount is reportedly preparing to buy for as much as USD 200 million.¹ Journalists are doing just fine without press publishers. Their freedom can even benefit the product: the larger press publishing houses become, the more they are influenced by commercial factors.² Journalism by individuals will often be “better” in the sense of being less influenced journalism because it is less subject to external control. This

¹ Levingston et al. (2025).

² Habermas (1990), p. 279.

development, that journalism can exist without press publishers, is therefore a good thing for media pluralism. Because if journalists can become self-employed and must no longer rely on media outlets to get their articles published, they no longer have to follow an editorial line, which leads to a plurality of opinions. Barri Weiss is a good example for this, too: she felt forced to leave the *New York Times* because she could not express her opinion at the newspaper without being bullied.³

2.2 Good and Bad Press Publishers Have Different Fortunes

There is no denying that news aggregators, search engines and AI-powered answer engines make it much harder for press publishers to turn a profit. AI models are trained with journalistic content they have financed. The press publishers do not get anything out of it – and that is the big difference. For a long time, there was a deal with digital intermediaries such as search engines and news aggregators: they were allowed to copy journalistic content for their search results by showing excerpts of it in form of reproduced headlines and short snippets. In return, they provided press publishers with something very valuable: search-generated traffic, which they could monetise for their advertising revenue.⁴ AI companies only take from press publishers, they do not benefit them. Due to their offerings, the web is changing: it is no longer search-driven but AI-driven with many zero-click interactions.⁵ Users get their answers directly: AI chatbots use large language models (LLMs) to provide summarised answers rather than just showing snippets and links which ultimately results in a loss of advertising revenue for press publishers.⁶

Still, as an economic player, you cannot expect to be protected from the inventions of others. If the information market changes, its players must adapt to those changes. There is not a crisis of journalism but only of some press publishers that offer journalistic products, which are no longer competitive in today's information market: the bundling of journalistic work by some press publishers. AI technology disrupts competition on the information market on which press publications, among other products, are offered. For this reason, press publishers need to perform better. They must offer products that can compete with AI-generated content which costs nothing and is provided in a second. That is not a bad thing either: more competition leads to better products, which is good for consumer welfare as well as for the public sphere. This latest media technology revolution does not create an *either-or situation* as the offerings of press publishers and AI chatbots do not satisfy the same information needs of consumers. Press publishers can coexist alongside AI answer engines. In fact, if they adjust to the needs of today's consumers, they can thrive. This is proven by recent success stories. There are publishing houses that succeed in standing out in the digital media landscape of

³ Cohen (2020).

⁴ Prince (2025); Radsch (2023), pp. 184–191.

⁵ Jain (2025).

⁶ Many AI chatbots provide links with their answers, but these will mainly serve to increase their reliability.

our time. Subscription numbers of *The Economist*⁷ and *The New York Times*⁸ have risen continuously in recent years. This year, the German weekly newspaper *DIE ZEIT* announced its highest subscription numbers since its founding in 1946. It increased subscriptions by six percent compared to the previous year.⁹ How is this possible, against all odds if you believe the press industry, in the age of AI? The answer is pretty simple: well-researched, well-written articles and a superb layout cannot be replaced by *fast-food information* presented in an AI-generated answer box that – given the current state of technology – might be wrong due to hallucinations. Products no longer worth their price are pushed out of the market – that is what Schumpeter called *creative destruction*.¹⁰

2.3 Press Publishers Are not the Guardians of the Public Sphere

Since the invention of printing at the beginning of the nineteenth century, it has been a common response to consider revolutions in media technology a threat.¹¹ It was once the mass media that was viewed with suspicion. In the second half of the twentieth century, they were still accused of narrowing people's opinions and filtering the public discourse.¹² *Habermas* is arguably their most renowned critic. As the production of mass media was only geared towards optimising sales, it was adapted for an audience with a low level of education,¹³ and the press in particular, since its beginnings, had been willing to pay for high sales by depoliticising its content.¹⁴ Due to the extent of its commercialisation and organisational concentration, it has accumulated so much power as a private actor that it could actually be harmful for the function of journalism.¹⁵ Interestingly though, *Habermas* didn't only describe the mass media, as a private actor, as being a threat for the public sphere in the second half of the twentieth century, but also praised them half a century later when platforms entered the scene. As new players in the media infrastructure, platforms might well have disruptive effects in the public sphere by profoundly changing the character of public communication. In contrast to these new digital intermediaries, the mass media, with their professional staff, were the ones who condensed communication into relevant and effective public opinion, thus forming the infrastructure of the public sphere.¹⁶

In today's discourse, press publishers have become "the good guys": as the guardians of public opinion, they can protect us all from disinformation on social media platforms and a fragmentation of the public sphere. And that is how they like

⁷ The Economist Group (2025).

⁸ Singh (2025).

⁹ Die ZEIT (2025).

¹⁰ Schumpeter (1942), p. 181.

¹¹ Bernard (2020), pp. 37–38; Tworek and Buschow (2016), pp. 2126–2127.

¹² Bernard (2020), p. 40.

¹³ Habermas (1990), p. 254.

¹⁴ Habermas (1990) pp. 258–259.

¹⁵ Habermas (1990), p. 284.

¹⁶ Habermas (2021), pp. 485–488.

to present themselves, as the pillar of a public sphere which is vital for a democracy. Yet, it is not as easy as that. The public sphere is a condition for democracy. Press publishers, however, are no longer *the* basic condition for the public sphere. With their journalistic products, press publishers and other mass media in private hands contribute to a trustworthy information environment, but they no longer guarantee it. The EU regulation should therefore be geared towards a strong and trustworthy information ecosystem for the public sphere. Instead, it is aimed at securing the income of press publishers which are no longer competitive in today's information market. The EU legislator should neither have opted for a regulation to strengthen the position of press publishers as only one relevant actor on today's information market nor granted them an exclusive right to do so: the press publishers' right.¹⁷

3 The EU Press Publishers' Right: An Exclusive Right to Fight Technological Progress

What started as a national peculiarity of German copyright law¹⁸ is now binding secondary law that Member States must implement. Article 15 of the Copyright in the Digital Single Market Directive (CDSM Directive) codifies the press publishers' right to secure the protection of press publications concerning online uses.¹⁹ Just a word on the German model for the European regulation: it did not work.²⁰ Neither does the European one and for the same reason:²¹ a proprietary protection of press publications is the wrong regulatory approach.²² The press publishers' right is not only a misconception because of its nature as a property right. Law that is tailored to the state of the art at a specific point in time – as in this case, the conflict press publishers versus search engines (Sect. 3.1) – very quickly reaches its expiry date. So too has the press publishers' right in times of AI (Sect. 3.2).

3.1 Press Publishers Versus Search Engines

Through the press publishers' right, the Union legislator seeks to empower press publishers by granting them exclusive rights to strengthen their negotiating position

¹⁷ For other regulatory ways to do so, *see* the regulation that the Australian legislator pursued with its News Media Bargaining Code; Peukert (2024), pp. 297–300.

¹⁸ There was a similar right in Spain (*see* Ley N° 21/2014, de 4 de noviembre, por la que se modifica el texto refundido de la Ley de Propiedad Intelectual aprobado por Real Decreto Legislativo 1/1996, de 12 de abril, y la Ley 1/2000, de 7 de enero, de Enjuiciamiento Civil), but the former German neighbouring right, which was codified in Secs. 87 *et seq.* German Copyright Act (old version), is closer to what the EU legislator has introduced.

¹⁹ According to AG Szpunar, Member States may adopt supporting measures to ensure the effectiveness of press publishers' rights, *see* Opinion of 10 July 2025, Case C-797/23 para. 72 – *Meta Platforms Ireland*.

²⁰ Balasingham et al. (2025), p. 1107; Stieper (2017), p. 134; there were even calls to abolish it, *see* Ohly (2014), p. 126; Leistner (2014), p. 849.

²¹ On the shortcomings of the press publishers' right, *see* Furgal (2023), p. 650.

²² On the press publishers' right as exclusive right, *see* Peukert (2024), pp. 296–297.

towards information society service providers (ISSPs).²³ Yet, exclusive rights can only strengthen the position of their owners if someone actually wants to license them. This is why the regulatory approach adopted by the EU legislator is doomed to failure from the beginning. The neighbouring right provides a licensing option for press publishers for their publications, but ISSPs are not obliged to obtain a licence from them.²⁴ By providing press publishers with an exclusive right in their press publications, the legislator wanted to preserve an old world that no longer exists. The concept of an exclusive right to reinforce the bargaining position of press publishers fails to reflect the relationship between press publishers and digital intermediaries in today's information market: they are *frenemies*.²⁵ Their relationship is symbiotic, still, press publishers are more dependent on intermediaries than *vice versa*. While ISSPs profit from but are not solely dependent on content provided by press publishers, the latter need referral-traffic to their websites generated by ISSPs to survive.²⁶

The protection of press publications as “property” has been the wrong approach from the very beginning for another reason: fundamental rights. The exclusion of the use of individual words or very short extracts of a press publication in Art. 15(1) CDMS Directive must be interpreted in accordance with fundamental rights. Yet, an interpretation that strikes a fair balance between the property right of press publishers as enshrined in Art. 17(2) CFR and the fundamental rights of ISSPs as well as users erodes the neighbouring right. Search engines still provide the basic infrastructure for the internet. They ensure that users know where to go for information. With the vast amount of information available online, it is impossible to use the internet effectively without search engines. Therefore, not only the fundamental right of ISSPs to engage in media-related activities must be taken into account when interpreting the exclusion of Art. 15(1) CDMS Directive,²⁷ but the freedom of information of users as guaranteed by Art. 11 CFR as well. A search for news cannot work though if users are only shown the headlines of press publications; they must be given a brief preview of the publications as well so that they know what content the search hits contain.²⁸ As of yet, there is not any case law from of the CJEU on the interpretation of this exclusion. As it is to be interpreted in accordance with fundamental rights, it must be understood as follows: ISSPs do not need to obtain licences for their snippets. Fundamental rights work in their favour, figuratively speaking: they provide them with a licence for free. The press publishers' right is justified by the availability of information.²⁹ Yet, in today's information society, it is their opponents whose offerings are more important for the information infrastructure.

²³ Recital 55 (1) CDSM Directive.

²⁴ Kowala (2025), p. 202; Peukert (2024), p. 303.

²⁵ Furgal (2023), p. 652.

²⁶ They even optimise their websites using Robots Exclusion Protocols (REP) to improve their searchability, see Conrad and Schubert (2018), p. 350; Balasingham et al. (2025), p. 1093 and 1095.

²⁷ See Art. 16 CFR in connection with Art. 11 para. 2 CFR; Rendas (2022), p. 474.

²⁸ See Peukert (2023), pp. 238–241.

²⁹ Recital 55 (1) CDSM Directive.

3.2 Press Publishers Versus AI

Due to its nature as a property right, the press publishers' right was very unlikely to achieve its objectives in the era of press publishers versus search engines. In times of AI, it will certainly fail to do so. Article 15(1) CDMS Directive provides press publishers in a Member State with the right of reproduction (Art. 2 InfoSoc Directive) and the right of making available to the public (Art. 3(2) InfoSoc Directive) towards ISSPs.³⁰ These exploitation rights cannot help press publishers to fight the training of LLMs with their content (3.2.1), nor against AI output based on it (3.2.2). Press publishers can also profit from the offerings of their new opponents. Ironically, the neighbouring right might apply when they use AI technology in producing journalistic content. In the end, though, this will not help them either. (3.2.3).

3.2.1 Training AI with Press Publications Beyond the Scope of EU Copyright Law

It seems to be the general opinion that, within the training process of AI models, reproductions are made.³¹ Yet, it is by no means self-evident to qualify them as an exploitation that falls within the scope of protection of copyright law.³² EU copyright law does not cover the pure enjoyment of a work in the form of reading. But this is what LLMs do during the training process: they analyse copyright-protected material in order to learn. Unlike a real flesh-and-blood reader consuming a newspaper, during the training process LLMs must make copies for technical reasons. These reproductions are not in themselves acts of commercial exploitation, instead they are copies made only as a consequence of their technical functioning.³³ Actions do not lose their social significance when they are realized by new technical means. The normative framework of copyright law should be oriented towards the social significance of an act and not its technical particularities.³⁴ That is why the pure “enjoyment” of press publications just made via a machine might not be qualified as an exploitation act within the meaning of copyright law.³⁵ However, in the *status quo* of EU copyright law, copies made during the AI input phase constitute a reproduction.

It follows from Art. 53(1)(c) and Recitals 104–106 of the Artificial Intelligence Act (AI Act) that the text and data mining (TDM) exception and limitation in Art. 4

³⁰ Kowala (2024), p. 1609.

³¹ Quintais (2025), p. 2; Senftleben (2025), p. 7.

³² Senftleben (2025), p. 26; Senftleben (2023), pp. 1542–1543.

³³ Lennartz and Kraetzig (2024), pp. 1259–1260; Kraetzig (2024), pp. 689–699.

³⁴ Lennartz and Kraetzig (2024), p. 1260.

³⁵ For a rethinking of economic rights in general, see Dusollier (2018), p. 163; see also Art. 30–4 Japanese Copyright Act, according to which copies that cannot be appreciated by human senses should not require permission from the rights holders; Dermawan (2024), pp. 53–57; see also Ducato and Strowel (2021), p. 334; Borghi and Karapapa (2011), pp. 44–45 with a differentiation between “works as works and works as data”.

CDMS Directive applies to AI systems.³⁶ This means that press publishers can reserve the right to TDM their content through “machine-readable means in the case of content made publicly available online”. However, whether press publishers can reserve the right to TDM their content without giving up the listing of their content in search engine results is highly controversial.³⁷ In this respect, their symbolic relationship with search engines is still important, as it also affects their relationship with AI. Economically, press publishers cannot afford to ban web crawlers from their websites by reserving rights for TDM if this means they will no longer appear in search results. With such an opt out, they would saw off the branch on which they themselves are sitting.³⁸ However, even if they could opt out of TDM, there is another reason why, most of the time, their right cannot be invoked against the reproduction of press publications in the training process of AI: the territoriality of copyright.³⁹ AI training takes place in countries beyond the scope of EU copyright law, particularly in the United States and China. Unfortunately for the European news industry, the EU does not deliver new technologies but only new technology regulation.

3.2.2 AI Output without Exploitation of Press Publications

If AI-generated answers contain copyrighted material, the reproduction and making available to the public of such AI output can fall within the scope of EU copyright law. Unlike in snippets, in AI-generated answers, press publications are usually not reproduced verbatim but rather rephrased.⁴⁰ At the latest since *The New York Times* filed a lawsuit against Open AI,⁴¹ it has become more difficult to get AI chatbots to reproduce press publications word for word – even if one explicitly asks them to do so. The CJEU interprets the right of reproduction broadly: in line with its case law in *Pelham*,⁴² the press publishers’ right will not only be infringed when a press publication is reproduced verbatim in AI output, but also when it is recognisable.⁴³ It has to be assumed as “recognisable” if an average newspaper reader would recognise the press publication in the AI output when directly comparing one to the other.⁴⁴

³⁶ Antoine (2025), p. 122; this can be criticised though, see Margoni and Kretschmer (2022), p. 689: “... in a properly designed copyright framework there should be no need for a TDM exception, as the extraction of factual information from protected content is external to the remit of copyright”.

³⁷ Kowala (2024), p. 1623.

³⁸ Kraetzig (2024), p. 702.

³⁹ Metzger (2025), p. 333; a “Brussels Effect” as described by Anu Bradford is not to be expected in this respect, see De la Durantaye (2025), pp. 167.

⁴⁰ But see the questions referred for a preliminary ruling to the CJEU in Case C-250/25 – *Like Company/Google Ireland Limited*.

⁴¹ See the complaint of *The New York Times*: https://nytco-assets.nytimes.com/2023/12/NYT_Complaint_Dec2023.pdf.

⁴² *Pelham and Others* IIC 50:1156–1157 (2019), para 39, <https://doi.org/10.1007/s40319-019-00876-z>.

⁴³ Kowala (2024), p. 1608.

⁴⁴ On the criterion of recognisability, see Leistner (2019), p. 1010.

Because of the nature of the protected subject matter, however, press publications will very often not be recognisable in AI-generated news content. Newspapers include a range of genres: from merely informative descriptions of events, to opinion pieces, to artistic essays, or even poems.⁴⁵ Press publications within the meaning of Art. 2(4) CDMS Directive must have “the purpose of providing the general public with information related to news or other topics” though. If AI output copies an artwork, a fictional novel or a film, because of its uniqueness, an average observer will likely be able to recognise the original in it. With press publications, things are different. They mainly report on *news* and therefore in a generic way. This is because news is not a personal creation of a journalist but rather merely facts about what happened in the actual world. This was famously addressed in 1918 by the US Supreme Court in its *International News Service v. Associated Press* case: “... the news element – the information respecting current events contained in the literary production – is not the creation of the writer, but is a report of matters that ordinarily are publici juris; it is the history of the day.”⁴⁶

It will be almost impossible for press publishers to prove that it is actually their press publication that is been recognised by an average reader and thus reproduced in AI output and not only the facts contained therein. Due to the idea/expression dichotomy as one of the cornerstone principles of copyright law and in line with Recital 57 sentence 2 CDMS Directive, the press publishers’ right cannot extend to facts reported in press publications as those cannot be owned by anyone.

3.2.3 Copyright Protection for AI Journalism

Press publishers also get something out of AI technologies.⁴⁷ They can use them for operational processes or their journalists for faster content production: they can use AI to research information or even to write their texts.⁴⁸ The press publishers’ right in Art. 15 CDMS Directive can cover such AI-generated content as part of a collection that qualifies for protection as a “press publication”. According to the definition of Art. 2(4) CDMS Directive, a press publication “means a collection composed mainly of literary works of a journalistic nature, but which can also include other works or other subject matter ...”. The second part of the definition can be read as an argument for or against protecting AI-generated content published in a press publication.⁴⁹ It can be interpreted in the sense that “other subject matter” only refers to “literary works”, so that the second half-sentence should be read as: “other copyright-protected subject matter”. However, better reasons speak for interpreting it in such a way that “other subject matter” refers to content that is *not* protected by copyright law. The wording of Art. 2 CDMS Directive supports this interpretation. Accordingly, a collection must mainly be composed of literary works

⁴⁵ Czarny-Drozdzejko (2020), p. 628.

⁴⁶ *International News Service v. Associated Press*, 248 U.S. 215 (1918); Slauter (2019), pp. 227–269.

⁴⁷ This is why Senftleben’s approach is interesting, according to which not only AI companies but also media companies as users of AI systems should pay remuneration; see Senftleben (2024), 25.

⁴⁸ Senftleben (2024); Trapova and Mezei (2022), p. 589.

⁴⁹ See Vesala (2022); Czarny-Drozdzejko (2020), p. 632.

to qualify as a press publication, but it does not matter of what nature the non-main components are. These *can* include other protected subject matter but do not have to. Decisive for this interpretation is Recital 56(3) CDMS Directive which adds that “other subject” matter can “in particular” be constituted of “photographs and videos”. Only some Member States protect photographs below the threshold of originality under neighbouring rights,⁵⁰ while most Member States do not provide such protection for non-original photographs. If the protectability of “other subject matter” were made a requirement for protection, the subject matter of the press publishers’ right would diverge in the Member States. Yet, diverging standards of protection for press publications would undermine the harmonisation the Directive aims to achieve. Hence, press publications within the meaning of Art. 15 CDMS Directive *can* entail AI-generated content such as images or text that in itself would not be granted protection in our human-centric copyright system.

This means, press publishers can use AI to generate low-cost images to accompany journalistic texts or even to write texts⁵¹ and enjoy the protection of Art. 15 CDMS Directive towards (other) ISSPs. Yet, legal as well as economic arguments speak against publishing AI journalism. To start with the legal argument: the quality of any kind of AI-generated content is constantly improving, still, LLMs hallucinate with plausible but false statements. The publication of AI-generated content can therefore be costly for publishers if third parties claim damages for false statements of fact or defamation. In addition, many Member States have soft law instruments that set standards as regards journalistic duty of care, such as the German Press Code guidelines issued by the German Press Council.⁵² Obviously, relying on LLMs knowing that they might be hallucinating violates journalistic duties of care. As for the economic argument against using AI content in press publications: it will not increase the competitiveness of press publishers – quite on the contrary. In today’s information market, press products must satisfy needs AI cannot, be it with old-style print editions, impressive graphic design or with human journalists with whom readers feel a personal connection. With AI-generated texts, which chatbots provide for free anyway, press publishers will certainly not succeed. In the worst-case scenario, if they publish AI-generated texts containing false statements, their biggest competitive advantage over AI chatbots will be lost: people’s trust. In summary: press publishers have been gifted with an exclusive right other private actors affected by digitalisation could only ever dream of.⁵³ Yet, it is of no help to them, because a proprietary protection of press publications as a medium for news is the wrong approach in today’s information ecosystem.

⁵⁰ Kraetzig and Lennartz (2023), pp. 1666–1669.

⁵¹ According to Art. 50(1) AI Act, there is no obligation to disclose that texts have been generated by AI if they have been subject to editorial control and a natural or legal person bears editorial responsibility for the publication of the content.

⁵² For the German Press Code guidelines, see Deutscher Presserat (2025). It has recently been amended to include journalistic content created with the help of artificial intelligence.

⁵³ Hilty (1991), p. 58.

4 A Matter of Imitation

Ever since there has been a commercial market for news, there has been free-riding on news others have published.⁵⁴ For centuries, rivals have rewritten each other's publications and published them as their own without attribution. Currently, a kind of "rewriting" of news from others is happening yet again, though not by hand but turbo-charged by AI. It goes without saying that a – in the rhetoric of press publishers⁵⁵ – *theft* of others' intellectual property for one's own profit is not acceptable. Yet, you can only steal something that is owned by someone else. What does AI take from press publishers? It is their *news* or, in the semantics of copyright doctrine: facts. Neither news nor facts can be owned by anyone as press publishers should know: the fact/expression dichotomy in copyright law benefits them as well since their journalists do not create press content out of nothing either. Journalists themselves very often get the facts for their pieces from journalistic or scientific sources of others without having to pay for it.

I suggest that the debate on AI should therefore not be perceived as a problem of reproduction but of *imitation*. It is not a matter of property but of fairness – hence, not a matter for copyright but for unfair competition law. When considering further regulation to address the conflict between press publishers and AI, the EU legislator should therefore leave the field of copyright law with its proprietary protection. I propose to understand the conflict of press publishers versus AI companies as one between market players that should be addressed through unfair competition law regulation.⁵⁶ There is currently no EU legal framework that provides protection against imitation under unfair competition law as the Unfair Commercial Practices Directive (UCP Directive) only covers unfair business-to-consumer commercial practices but does not harmonise the protection of competitors against each other within the EU.⁵⁷ In Germany, unfair competition law provides such protection: the protection against imitation between competitors.⁵⁸ According to its provisions, an imitation as such is not unlawful because the principle of free competition requires freedom to imitate since otherwise competition in innovation would be hindered.

An imitation is only deemed to be unlawful if the circumstances under which the imitation takes place or the imitated product is offered on the market are *unfair*. In this regard, German law lists the following categories: avoidable deception regarding origin, exploitation of a competitor's reputation, or dishonest obtainment of knowledge to enable imitation. Moreover, for protection under unfair competition law, a competitor's product must be imitated and offered for sale that has

⁵⁴ Slauter (2019), pp. 15–16.

⁵⁵ Tworek and Buschow (2016), pp. 2127–2128.

⁵⁶ In addition, antitrust law may also apply in the case of an abuse of a dominant market position, although it is unlikely not only due to the dominant market position of individual players at this point, but also because of the efficiency gains for consumers that come with AI answer engines.

⁵⁷ See Art. 3(1) UCP Directive; on its general clause of unfair commercial practice see Kur et al. (2024), pp. 28 *et seq.*

⁵⁸ See Sec. 4, No. 3 German Unfair Competition Act.

“competitive originality”.⁵⁹ As the German Federal Court of Justice has stated in its *Perlentaucher* ruling, the journalistic quality of a text cannot constitute its competitive originality, as it does not indicate the origin of the text from a specific press publisher nor represent a distinguishing feature from other texts of comparable quality.⁶⁰ Not many journalistic texts will show such competitive originality. If any do, then probably well-known columns that are renowned for the unique style of their authors or particularly creative formats. If the imitated product displays competitive originality, a case-by-case balancing of interests is to be undertaken to determine whether the imitation is unfair in the individual case. Insofar, an interaction between the degree of competitive originality, the manner and intensity of the imitation and the specific competitive circumstances must be considered.⁶¹ I think that these flexible categories of unfair competition law are much more suitable for addressing the conflict between press publishers and AI than those of copyright law with its proprietary protection. As with any other product, an AI-generated product may resemble another product if there is no piggybacking on its reputation.

5 Conclusion: Regulation for a Well-Functioning Information Market

I suggest that the EU media regulation should not be aimed at improving the position of one player, namely press publishers, but rather at ensuring a well-functioning information ecosystem for the public sphere. Just as much as the information infrastructure provided by search engines, AI-powered answer engines are beneficial for consumer welfare and the public sphere as long as they do not drive competitors out of the market through unfair business practices, but rather encourage them to compete. The assumptions of unfair competition law might therefore be a good starting point for a technology-friendly EU regulation of today’s information market. If a certain threshold of unfairness is not met, LLM-based chatbots may resemble press publications as free competition requires freedom to imitate.

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⁵⁹ Federal Supreme Court, December 7, 2023 – Case No. I ZR 126/22, 2024 GRUR 139, para. 15 – *Glück* (“*wettbewerbliche Eigenart*”).

⁶⁰ Federal Supreme Court, December 1, 2010 – Case No. I ZR 12/08, 2011 GRUR 134, para. 67 – *Perlentaucher*.

⁶¹ Federal Supreme Court, December 7, 2023 – Case No. I ZR 126/22, 2024 GRUR 139, para. 11 – *Glück*.

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